

TENTATIVE RULING(S) FOR JULY 17, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2522097

Cole vs Cole

TENTATIVE RULING(S):

For context, this is a quiet title litigation. On July 30, 2025, Plaintiff Pamela J. Cole filed her Complaint against Defendant Kevin M. Cole, alleging one cause of action for quiet title.

The Complaint alleges that Pamela, individually and later as the trustee of the Cole Family Trust, owns the property at 945 West J St., Ontario (¶¶4, 9-12). On May 11, 2021, Pamela executed a Durable Power of Attorney (DPA) for finances in favor of her son, Kevin. Then on September 20, 2023, she revoked Kevin's DPA, and issued a DPA in favor of her daughter, Candice M. McCormick (¶¶6-7). Kevin claims an interest in the Subject Property (¶¶13-14).

On May 8, 2026, Defendant Kevin moved to dismiss the Complaint. As no opposition was filed, the Court on May 28, 2026, granted the motion. Thereafter, Plaintiff moved ex parte to set her motion to set aside the dismissal on shortened notice. On June 18, 2026, the Court granted Plaintiff's Ex Parte to consider Plaintiff's Motion to Set Aside on shortened notice, and, if granted, to reconsider the Dismiss Motion. On that same date, Plaintiff Pamela filed her Motion to Set Aside and her Opposition to the Dismiss Motion. No opposition is on file to the Set Aside Motion.

ANALYSIS

Set Aside. Although no opposition was filed to the Set Aside Motion, the Court GRANTS the motion after reviewing the motion, and based on either extrinsic mistake or attorney-fault (Code Civ. Proc., §473, subd. (b)).

Dismissal. Defendant Kevin moved to dismiss the Complaint because during the meet and confer process required before he could Demurrer, the parties agreed that Plaintiff would amend. On December 24, 2025, a Stipulated Order for Leave to File a First Amended Complaint (FAC) was entered. It provided that parties agreed that Plaintiff was permitted to file a FAC. After the stipulation, the parties discussed settlement, but when no settlement was reached, Plaintiff's Counsel was of the opinion that quiet title was the right avenue and there was no need to amend the Complaint. He informed Defense Counsel that an Answer to the Complaint was needed. (Berkley Decl. at ¶¶6, 8, 17-20, 22, 25-26.) Instead of responding to the Complaint, Defendant filed his Dismiss Motion.

The authority for the dismissal cited in the Defendant's Motion is Code of Civil Procedure section 581, subdivisions (f) and (m). Subdivision (f) permits a Court to dismiss an action if a Demurrer or Strike Motion are sustained without leave to amend, or if no amended complaint is filed after a sustained with leave to amend Demurrer or Strike Motion. Yet Plaintiff's permission for leave to amend was not based on a sustained Demurrer or Strike Motion. Thus, subdivision (f) offers no support for dismissal.

Subdivision (m) provides that nothing in section 581 shall be deemed an "exclusive enumeration of the court's power to dismiss an action or dismiss a complaint as to a defendant." Yet this does

not support dismissal, but only provides that the Court's power to dismiss is not limited to the standards listed in section 581.

Defendant Kevin asked that the Complaint be dismissed because it was withdrawn when Plaintiff agreed to file a FAC. However, after scrutinizing the Stipulation more closely, Defendant's position is not accurate. The Stipulation provided that Plaintiff was *permitted* to file an FAC. Nothing in the Stipulation stated that Plaintiff had withdrawn her Complaint. Nothing in the Stipulation stated that Plaintiff was mandated to file an FAC. Rather by the language in the Stipulation, Plaintiff was free to decline to file an FAC, and then place the obligation on Defendant Kevin to respond via Demurrer, Strike, or Answer.

Thus, Defendant Kevin offered no reasonable ground to dismiss this action. Therefore, Defendant's Motion to Dismiss is DENIED.

RULING

For all the reasons stated above, the Court:

- (1) GRANTS Plaintiff Pamela Cole's Motion to Set Aside the Dismissal;
- (2) DENIES Defendant Kevin Cole's Motion to Dismiss; and
- (3) ORDERS Defendant Kevin Cole to file a responsive pleading to the Complaint within the next 15 days; and if Defendant contemplates filing a Demurrer and/or Strike Motion, the Court reminds counsel to conduct a code-compliant meet and confer before filing their motions. A declaration on those efforts must be submitted with any filed Demurrer and/or Strike Motion.

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CIVSB2112806

Lopez vs FCA

TENTATIVE RULING(S):

Before this Court is Plaintiff's motion for prevailing party's attorney's fees pursuant to Song Beverly.

For context, this matter was removed to Federal Court on December 2, 2019. On February 3, 2020, Plaintiff filed the operative first amended complaint ("FAC") eliminating the Magnuson-Moss cause of action, and therefore renumbering the fraudulent inducement-concealment claim as the sixth cause of action. The matter was remanded to Orange County on February 11, 2020. A motion to compel arbitration was filed on March 10, 2020 by FCA and then withdrawn on June 4, 2020. A protective order was entered into on June 8, 2020. Plaintiff moved to compel further responses to discovery on June 16, 2020 and Defendants moved to transfer venue on June 23,

2020. On September 25, 2020, the Court signed the order transferring venue to San Bernardino County. Judge Gilbert Ochoa held a trial setting conference on July 6, 2021, and set a jury trial for May 30, 2023.

After opposition and reply, the Court granted the motion for judgment on the pleadings as to the sixth cause of action on June 16, 2023.

On January 11, 2024, a notice of settlement of the entire case was submitted. The Court set an OSC for dismissal for July 18, 2024. The matter was reassigned from Department S24 to Department S37 on July 18, 2024. On August 5, 2024, then-Judge Corey Lee ordered a joint stipulation to dismiss with prejudice and retain jurisdiction.

On November 3, 2025, Plaintiff filed this present motion for attorney's fees and costs. Plaintiff asserts he is the prevailing party and pursuant to Song Beverly, attorneys fees are mandatory. Plaintiff seeks: (1) attorney's fees of \$33,591; (2) a multiplier of 1.35 (\$11,756.85); (3) \$7,984.56 in costs and expenses; and (4) an additional \$4,000 to review the opposition and draft the reply. Together with the motion, Plaintiff filed a request for judicial notice as to other judicial decision granting fees; declarations by Ange M. Baker, Esq. and Payam Shahian, Esq. together with a compendium of evidence.

FCA US LLC filed an opposition on March 10, 2026, together with evidentiary objections and the declaration of Colin P. Cronin, Esq.

On March 16, 2026, the Plaintiff filed a reply and evidentiary objections.

Request for Judicial Notice. Plaintiff requests judicial notice of 33 cases from other courts (mainly Federal and Los Angeles Superior Court cases) whereby their attorneys' fees were approved. Requests 23 and 24 were from Riverside and San Bernardino, however none of the cases were provided to the Court. While Court decisions are entitled to judicial notice pursuant to Evid. Code, §452, subd. (d), unpublished decisions cannot be cited or relied upon by a Court or a party in any action other than the actions in which the decisions are rendered. (Rule 8.1115, subd. (a), California Rules of Court.) Trial courts do not make binding precedent. (*King v. Order of United Commercial Travelers* (1948) 333 U.S. 153, 160-61; *Santa Ana Hospital Medical Center v. Bleshe* (1997) 56 Cal.App.4th 819, 830.) What another court ruled upon the hours and

fees in another county is not relevant to this proceeding. Additionally, Plaintiff failed to provide the Court with copies of decisions pursuant to Evid. Code, §453. Thus, the Court DENIES the request.

Objections. Attorney Shahian is the founder of the firm and is able to talk about their practices and the attorneys who work at his firm. He can comment on Court's decisions regarding his firm and their attorneys fees in his declaration. Therefore, the Court OVERRULES objections 1-22. Additionally, the Court OVERRULES objections 1-4 to the Barker's declaration and all objections to the declaration of Colin P. Cronin, Esq. The discussions in the declarations are standard for this motion.

Analysis. Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, they "shall be allowed by the court to recover ... a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).) Here, the Plaintiff is the prevailing party pursuant to the settlement entered into between the parties which FCA US LLC does not dispute. Plaintiff seeks: (1) attorney's fees of \$33,591; (2) a multiplier of 1.35 (\$11,756.85); (3) \$7,984.56 in costs and expenses; and (4) an additional \$4,000 to review the opposition and draft the reply. In the opposition, Defendants claim that Plaintiff should recover no more than \$15,035.00 in costs or \$16,625.00 applying a maximum blended rate of \$350. The costs should be taxed in their entirety or alternatively should be no more than \$3,028.90. (Opposition at 15:18-24.)

Hourly Rate. Generally, a reasonable hourly rate is prevailing in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095 ["*PLCM*"]; *MBNA America Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1, 13.) But when the evidence reveals the plaintiff could not secure a local attorney to represent him, the out-of-town attorney's home market rate is applied. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 397-99.)

The chart showing the attorneys who worked on the case and their hours and fees claimed:

Attorney Name	Bar Admit	Position	Hourly Rate	Year of Work	Hours	Fee
Christopher Campbell	2015	Trial Counsel	495	2023	8.5	4,207.50
Tionna Carvalo	2014	Partner	495	2020	2.3	1,138.50
Tionna Carvalo			570	2023	1.2	684.00
Tionna Carvalo			595	2024	0.7	416.50
Dhara Chanfy	None	Provisionally Licensed	350	2024	0.1	35.00
James Doddy	2004	Attorney	595	2021	1.1	654.50
Mark Gibson	2008	Attorney	435	2019	2.2	957.00
Mark Gibson			450	2020	1.9	855.00
Christine Haw	2013	Senior Atty	500	2023	1.0	500.00
Jared Kaye	2019	Attorney	395	2023	2.1	829.50
Eleazar Kim	2017	Attorney	360	2020	14.2	5,112.50
Elizabeth Larocque	2002	Attorney	595	2024	0.9	535.00
Daniel Law	2016	Attorney	425	2020	8.0	3,400.00
Daniel Law			475	2023	7.6	3,610.00
Jacob Lister	2009	Attorney	495	2023	4.0	1,980.00
Julian Moore	2003	Attorney	525	2019	0.5	262.50
Julian Moore			525	2020	1.4	735.00
Rebecca Neubauer	2014 IL	Attorney	435	2021	6.7	2,914.50

Rebecca Neubauer	2021 CA		495	2023	0.2	99.00
Anh Nguyen	2012	Attorney	435	2020	2.4	1,044.00
Nino Sanaia	2015- GA; 2022 CA	Attorney	425	2023	0.7	297.50
Marcy Sanchez	2006	Attorney	485	2020	1.7	824.50
Payam Shahian	2003	Founder	875	2025	1.2	1,050.00
Yenok Tantanyan		Law Clerk	345	2025	4.2	1,449.00
		Total			74.8	33,591.00

(See Shahian Decl., ¶¶ 11-17, Ex. 1.)

“What a plaintiff may be bound to pay and what an attorney is free to collect under a fee agreement are not necessarily measured by the ‘reasonable attorney’s fee’ that a defendant must pay pursuant to a court order.” (*Reynolds v. Ford Motor Co.*, *supra*, 47 Cal.App.5th 1105, 1116 (internal citations omitted).) Further, when awarding attorney fees, a trial court is limited by the terms of subdivision (d) of section 1794, which “controls what the losing defendant must pay, not what the prevailing plaintiff must pay his lawyer. The attorney fees provision of the Song-Beverly Act “was not intended ‘to replicate exactly the fee an attorney could earn through a private fee arrangement with his client.’” (*Reynolds*, *supra*, 47 Cal.App.5th 1105, 1116, citing to *Pa. v. Del. Valley Citizens’ Council for Clean Air* (1986) 478 U.S. 546, 565.) As such, the only issue regarding rates before the Court is whether they are reasonable.

A review of decisions from the past few years have found that fees in the range presented by Plaintiffs’ counsel to be on the higher side of what other judges have found reasonable in other

similar Song-Beverly fee motions. (*See, e.g., Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019, No. 3:17-cv-0577-AJB-BGS) 2019 U.S. Dist. LEXIS 141480, at *8-9 [finding rates of \$350-\$550/hour to be reasonable]; *Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019, No. 17-CV-0398 W (KSC)) 2019 U.S. Dist. LEXIS 89984, at *5-6 [finding rates of \$275-\$550/hour to be reasonable]; *Goglin v. BMW of North America, LLC* (2016) 4 Cal. App. 5th 462, 473-74 [finding a rate of \$575 reasonable where BMW argued the case was not complex and provided evidence that counsel for BMW charged much lower hourly rates]; *Shaw v. Ford Motor Co.*, No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (C.D. Cal. Jan. 3, 2020) [approving rates between \$200 and \$550].)

Different judges have different views on how high an hourly fee should be and Plaintiff cites decisions where their hourly fee has been approved. (See Shahian Decl.) For San Bernardino County, as well as the area of law, the fees sought are too high. While there are attorneys with significant work experience, the current titles and years of admittance are not the same when looking from 2026 as from an attorney with a 2014 bar admittance and 2020 hourly fee. (See e.g., Carvalo.) The hourly fees are reduced as shown below.

Attorney Name	Bar Admit	Position	Hourly Rate	Year of Work	Hours	Fee
Christopher Campbell	2015	Trial Counsel	350	2023	8.5	2,975.00
Tionna Carvalo	2014	Partner	375	2020	2.3	862.50
Tionna Carvalo			450	2023	1.2	540.00
Tionna Carvalo			450	2024	0.7	315.00
Dhara Chanfy	None	Provisionally Licensed	200	2024	0.1	20.00
James Doddy	2004	Attorney	350	2021	1.1	385.00
Mark Gibson	2008	Attorney	350	2019	2.2	770.00

Mark Gibson			350	2020	1.9	665.00
Christine Haw	2013	Senior Atty	425	2023	1.0	425.00
Jared Kaye	2019	Attorney	325	2023	2.1	682.50
Eleazar Kim	2017	Attorney	350	2020	14.2	4,970.00
Elizabeth Larocque	2002	Attorney	350	2024	0.9	315.00
Daniel Law	2016	Attorney	325	2020	8.0	2,600.00
Daniel Law			350	2023	7.6	2,660.00
Jacob Lister	2009	Attorney	350	2023	4.0	1,400.00
Julian Moore	2003	Attorney	350	2019	0.5	210.00
Julian Moore			350	2020	1.4	49.00
Rebecca Neubauer	2014 IL	Attorney	350	2021	6.7	2,345.00
Rebecca Neubauer	2021 CA		325	2023	0.2	65.00
Anh Nguyen	2012	Attorney	350	2020	2.4	840.00
Nino Sanaia	2015- GA; 2022 CA	Attorney	350	2023	0.7	245.00
Marcy Sanchez	2006	Attorney	350	2020	1.7	595.00
Payam Shahian	2003	Founder	500	2025	1.2	600.00
Yenok Tantanyan		Law Clerk	200	2025	4.2	840.00
		Total			74.8	25,374.00

Reasonable Hours. The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; see also *Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 ("The party opposing the fee award can be expected to identify the particular charges it considers objectionable").) "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal. App. 5th 24, 39.) In *Morris*, the appellate court upheld the trial court's determination that the use of 11 attorneys, from two firms, was unreasonable for a non-complex lemon law case. (*Id.* at 41.) The court further held that, where voluminous records are submitted, the trial court may strike all fees incurred by the excess attorneys. (*Ibid.*)

[*Morris v. Hyundai Motor America* \(2019\) 41 Cal.App.5th 24, 40-41 states:](#)

The court could properly have made an across-the board reduction of 30 percent to accomplish the same purpose. (See *Warren, supra*, 30 Cal.App.5th at p. 41 ["when a "voluminous fee application" is made ... the court may ... "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure""].) The court got to the same result by cutting particular attorneys' billings. We are satisfied that the trial court did not abuse its broad discretion to determine the reasonable value of the professional services performed by Morris's attorneys. (See *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1096 ["[t]he trial court may make its own determination of the value of the services""]; *Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 625 [134 Cal. Rptr. 602] ["the trial court ... is not bound by the itemization claimed in the attorney's affidavit"].)

...

“In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East, supra, 6 Cal.App.5th at p. 437; see Mountjoy, supra, 245 Cal.App.4th at p. 272 [“[a] reasonable hourly rate is the product of a multiplicity of factors ... [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case”].)

Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240 is also a good discussion of attorney's fees.

Defendants claim that counsel's hours are unsupported, excessive and unreasonable and should be reduced; there was gross overstaffing on this case; requesting \$345 for an unlicensed law clerk; excessive, cumulative and unnecessary time; block billing should be reduced or rejected; there was unreasonable time for this motion. Defense counsel submits various exhibits to show where they seek reductions in hours. (Ex. 1-4.) The challenging part is that Plaintiff's seek 5.4 hours and \$2,999 for this motion and \$4,000 to review the opposition, file the reply and attend the hearing. While there is a template and the discovery requests, responses, meet and confer and the attorneys fee demand are similar to other cases, each had to be modified for this particular case and work does go into performing the task. The Defendants seek to reduce the hours to 47.50. However, a total of 74.8 hours on an action filed in 2019, went to Federal court and back, changed venues, had discovery motions and a motion for judgment on the pleadings filed and argued, and reach a settlement whereby Plaintiff received \$119,492.40 plus attorney's fees, is actually reasonable. The Court finds the hours allowed on the motion sufficient for reviewing the opposition, reply and hearing as well.

Multiplier. “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar

calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.) Although Plaintiff’s counsel obtained a recovery on behalf of their client, it is not clear the quality of representation “far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at” the rates requested. (*Ketchum v. Moses, supra*, 24 Cal.4th 1122, 1139.) Further, based on a review of recent case law, multipliers do not seem to be awarded in typical in Song-Beverly actions. (See, e.g., *James Holcomb & Rotoco, Inc. v. BMW of N. Am., LLC* (S.D. Cal. Feb. 14, 2020) No. 18cv475 JM (BGS)) 2020 U.S. Dist. LEXIS 26094, at *25 (denying request for a 0.3 multiplier, stating it was counsel’s “own choice to take this case on a contingency basis” and should not be the basis for a multiplier); *Chavez v. Jaguar Land Rover N. Am., LLC* (S.D. Cal. Jan. 23, 2020, No. 18-cv-2811 W (JLB)) 2020 U.S. Dist. LEXIS 12187, at *9 (rejecting 0.3 multiplier based on the posture and lack of complexity of case); *Hamm, supra*, 2019 U.S. Dist. LEXIS 141480 (rejecting 0.5 multiplier because the case did not involve complexity or novel or difficult questions of law or fact); *Petropoulos, supra*, 2019 U.S. Dist. LEXIS 89984 (“Plaintiffs were not litigating important constitutional rights here. Nor were they representing the public interest. . . . They were seeking compensation and statutory penalties for a defective Durango.”).) As stated by a sister-court in Los Angeles County, in denying a similar multiplier request: “Lemon law litigation is not, as a general rule, complex, and Plaintiff has offered no evidence to show this case was an exception. Defendant’s counsel may have engaged in scorched-earth tactics, but that does not make the questions involved novel or difficult. There is also no testimony or other evidence to suggest this litigation required special skill or precluded [counsel] from taking on clients. The contingent nature of the award, by itself, does not justify a multiplied award.” (*Pttyan v. Aston Martin Lagonda of N. Am.*, Case No. 20STCV47129, Sup. Ct. Los Angeles, 2023 Cal. Super. LEXIS 72413, *9-10.) As such, the Court DENIES Plaintiff’s request for a multiplier. Here, the hourly rate is already sufficient and these cases are formulaic.

Costs. As for Plaintiff’s request for costs, a memorandum of costs was not submitted. Plaintiffs just lists various costs in Exhibit 1 to the Shahian declaration. In Exhibit 3 of the Cronin

declaration, FCA brings up issue related to Ford litigation listed in the cost declaration which are appropriate. The Court therefore DENIES the costs without prejudice to filing a proper memorandum of costs.

RULING

For all the reasons stated above, the Court:

1. OVERRULES objections 1-22; OVERRULES objections 1-4 to the Barker's declaration and all objections to the Cronin's declaration;
2. DENIES Plaintiff's Request for Judicial Notice;
3. AWARDS Plaintiff the total amount of \$25,374.00 in attorney's fees which includes any review of opposition and reply;
4. DENIES any request for a multiplier; and
5. DENIES the costs without prejudice to filing a memorandum of costs pursuant to Code Civ. Proc., §1033.5.